THE STOP KIT

Student Packet · What to do before, during and after a police stop

Name: _____

Class: _____

Your place (circle one): Mississippi · DC · Maryland · Virginia · Other: _____

The rule for every stop: During the stop, your only job is to get home safe. The fight happens after, on paper.

Documentation beats conversation.

The interactive version: lawrencetotimeh.com/class/stop

CUT OUT AND KEEP · KNOW THESE BY HEART

1. **"Am I free to go?"**
2. **"I'm choosing to remain silent."**
3. **"I don't consent to any searches."**
4. **"I want a lawyer. I want my parent."**
5. **"May I have your name and badge number?"**

Calm voice. One time each. Hands visible. Write everything down after. · The Stop Kit

PART 1 FIVE RULES FOR ANY STOP

1. Stay calm. Keep your hands where they can see them.

Officers are trained to watch hands. Before you reach for anything, say what you're doing.

> **"My license is in my back pocket. I'm going to reach for it now."**

2. Don't run, fight or argue. Even if you think it's wrong.

You can't win an argument on the side of the road. You can win it later with a complaint, a record and witnesses. Remember the words they used and write them down after.

3. Find out if you can leave.

> **"Officer, am I free to go?"**

If yes: leave calmly. Don't run. If no: you're being detained. Ask "What's the reason I'm being stopped?" and remember the answer word for word.

4. You can stay silent. Say it out loud.

> **"I'm choosing to remain silent. I'd like to speak to a lawyer."**

Exceptions: if you're driving, you must hand over your license, registration and proof of insurance. Never give a fake name. In Virginia that's a crime by itself, and anywhere it makes things worse. Don't explain yourself. "I only had one drink" can be used against you.

5. You don't have to agree to a search.

> **"I don't consent to any searches."**

If they search anyway, don't touch them or block them. Say it once. Later, write down exactly what they searched and what they said.

If you're under 18

> **"I'm under 18. I want my parent or guardian. I want a lawyer before I answer questions."**

- **Maryland:** before police question a child in custody, the child must talk to a lawyer first, and police must try to reach a parent (Child Interrogation Protection Act, 2022).
- **Virginia:** before questioning an arrested child, police must notify a parent and let the child contact them (Va. Code 16.1-247.1). Since 2025, officers questioning a child in custody may not knowingly lie about important facts.
- **DC:** whoever takes a child into custody must promptly notify the parent (D.C. Code 16-2311).
- **Mississippi:** police must keep trying to reach a parent and invite them to be there for questioning (Miss. Code 43-21-303). "Invite" means questioning can start without them, so ask for your parent out loud.

Can I record?

In general, yes. You can record police doing their job in public, as long as you don't get in the way. Federal courts covering Mississippi (Turner v. Driver, 2017) and Maryland and Virginia (Sharpe v. Winterville, 2023) have said so. If you're the one stopped, it's usually safer for a passenger or friend to record. Say what you're doing first.

> **"I'm going to record. My phone is in my right hand."**

If an officer orders you to put it down, follow the order. Write it down after. Remember: their body camera records you too. Stay calm so the video tells your side.

Check yourself

Which rule is hardest for you to follow during a stop? Why?

PART 2 WHAT IF?

Real moments, what the law says, and what to do.

What if...	What to know	What to say or do
They want to look through my phone.	Not without a warrant, in most cases (Riley v. California, 2014). Don't unlock it. Don't give your passcode.	"I don't consent to a search of my phone." If they take it, don't fight. Write down who took it and when.
They tell me to get out of the car.	During a lawful traffic stop, officers can order the driver and passengers out (Pennsylvania v. Mimms, 1977; Maryland v. Wilson, 1997).	Get out slowly, hands visible. You still don't have to consent to a search.
When do I have to show ID?	Driving: yes, license, registration and insurance. Passenger: we found no general law in these four places requiring it. Walking: none of the four has a general ID law. At school: school rules can apply.	"Am I required to identify myself?" Never give a fake name.
"You're not detained, but you're not free to go."	That means you ARE detained. What happens decides it, not the words (U.S. v. Mendenhall, 1980).	"Okay. So I am being detained. What's the reason?" Then stay put.
Can police lie to me?	Often, yes, during questioning (Frazier v. Cupp, 1969). Virginia limits this for children in custody since 2025.	Don't explain yourself. "I'm choosing to remain silent. I want a lawyer. I want my parent."
They said, "We just want to talk."	That's usually voluntary. You can decline.	"Am I free to go?" If yes: "I'm choosing not to answer questions. Have a good day." Leave calmly.
The school resource officer wants to question me.	A school officer is still police. In Maryland, a child in custody must talk to a lawyer first, even at school.	"I want my parent here before I answer any questions."
They're trying to get me out of character.	Talking back usually isn't a crime by itself. But pulling away, stepping toward an officer or reaching suddenly can give them a reason to detain or arrest you.	Breathe. Hands visible. Short sentences. You win on camera and on paper.
I want to call my parent.	Ask first. Don't grab your phone.	"Can I call my mom? I'm under 18."
I think they're wrong, and I'm being arrested anyway.	Resisting can become its own charge, even if the arrest is wrong.	"I'm not resisting. I'm choosing to remain silent. I want a lawyer."

What police can and can't do

They can

- Stop you for a real traffic violation, even if they're curious about something else (Whren, 1996).
- Order you out of the car.
- Pat down the outside of your clothes if they reasonably think you're armed (Terry, 1968).
- Ask questions. You don't have to answer.
- Arrest you with probable cause.

They can't

- Keep you longer than the stop needs without a new reason (Rodriguez, 2015).
- Search your phone without a warrant (Riley, 2014).
- Search your car or bag without consent, a warrant or probable cause.
- Force you to answer questions.

Sort it

Write **N** (I can say no), **M** (I must do it) or **A** (ask first) next to each one.

____	"Mind if I look in your backpack?"	____	Driver: "License and registration."
____	"Step out of the car."	____	You want to call your parent.
____	"Unlock your phone for me."	____	"We just want to talk."
____	"Put your phone down."	____	A passenger is asked for ID.

PART 3 BEFORE THEY LEAVE

How to get the officer's information without saying anything that hurts you. Calm voice. One time each. If they won't answer, don't push. Look for it instead.

Ask	Why
"Officer, am I free to go?"	Makes it clear whether the stop is over.
"May I have your name and badge number, please?"	You need it to file a complaint. If they won't say, read the name tag and badge.
"Which department are you with?"	City police, county police, sheriff, state police and school police each have a different place to file.
"What was the reason for the stop?"	Remember the exact words. Write them down later.
"Is there a report or incident number for this?"	That number is how you request the report and the body camera video later.
"Can I have your card?"	It has the information printed on it.
"Where and when is my court date?"	Only if you got a ticket. Signing usually just means you received it. Sign it, then fight it in court.

Don't say

- "I'm gonna sue you."
- "I know my rights!" (yelling)
- "I wasn't even speeding."

Say nothing about a complaint. Just file it later. Your side goes in the report and in court.

If they won't give it to you

- Read the name tag and badge.
- Remember the car number and plate.
- Note the time and exact place.
- As soon as you're safe, write everything down.

PART 4 STOP REPORT: FACTS, NOT FEELINGS

A report that says what happened is stronger than one that says how it felt. Feelings matter, so describe what caused them. Rewrite each one as a fact.

Feeling	Fact
"The cop was rude."	
"They searched me for no reason."	
"They held me forever."	

PART 4 STOP REPORT (CONTINUED)

Fill in what you remember. Skip what you don't know. Keep this page somewhere safe, or take a photo of it and email it to yourself. Tip: give a copy to a parent or trusted adult.

Place	State: _____ City or county: _____
When	Date: _____ Started: _____ Ended: _____
What I was doing	☐ Driving ☐ Passenger ☐ Walking ☐ At school ☐ Bus or train ☐ At home ☐ Other
Exact location	Street, cross street, landmark: _____
Department	☐ City police ☐ County police ☐ Sheriff ☐ State police ☐ School police ☐ Transit ☐ Campus ☐ Federal ☐ Not sure Name: _____
Officers	Names and badge numbers (write "didn't give it" if they refused): _____ Car number or plate: _____ How many officers: ____
Reason they gave, word for word	_____
What they asked and what I said	Write it like a script. Officer: "..." Me: "..." _____ _____ _____ _____
What happened to me	☐ Asked for ID ☐ Told to get out ☐ Patted down ☐ I was searched ☐ Bag searched ☐ Car searched ☐ Phone taken ☐ Handcuffed ☐ Put in police car ☐ Force used ☐ Ticket ☐ Arrested
Did I agree to a search?	☐ No search ☐ I said no, they searched anyway ☐ I said yes ☐ They didn't ask ☐ Not sure
Force, injuries, medical care	_____ Take photos of any injuries.
Anything taken	_____
Numbers	Ticket or report number: _____ Court date: _____
Why I think my rights were crossed	Stick to what happened. _____ _____
Proof	Witnesses (names, phone numbers): _____ Video: ☐ I recorded ☐ Someone else did ☐ Body camera seen ☐ Car camera ☐ Nearby cameras
Who I've told	_____

PART 5 ASK BETTER QUESTIONS

"What happens to me if..." gets you guesses. "What does the law say about..." gets you an answer you can check.

> **Whose law?** The Constitution sets the floor for everybody in the country. Your state can give you more protection, never less. Your county, city or school district sets police rules and policies inside that.

Worried question	Better question	Whose law? (federal, state, local or school)
"Am I gonna get arrested if I don't show ID?"		
"Can the cops go through my phone?"		
"Can the school officer question me without my mom?"		
Your own question: _____		

Is this source legit?

- **Who wrote it?** A .gov site, a court or a statute beats a random post.
- **Does it name the law?** Look for a number like "Va. Code 19.2-82.1" or "Fourth Amendment."
- **How old is it?** Laws change. Check the date.
- **Is it about your place?** A Texas answer doesn't count in Maryland.
- **Can you find it twice?** Two solid sources that agree beat one.

PART 6 REPORT IT

If you believe an officer crossed your rights, you don't have to let it go. Reporting is legal, and it's how the system gets a record.

When	What to do
Within 1 hour	Write everything down. Fill out the Stop Report. Photograph any injuries.
Within 2 days	Ask nearby businesses and neighbors to save their camera video. Many systems delete in days.
Within 1 week	Request the report and body camera video. File your complaint.
After you file	Write down the complaint number, who you talked to and the date. Check back every two weeks.

Everywhere: emergency, call 911. U.S. Justice Department Civil Rights Division: civilrights.justice.gov. FBI (when an officer willfully violates rights): tips.fbi.gov. Tell a parent or trusted adult. **Don't post the officer's name or accusations online.** Report through official channels.

Place	Where to file and how to get records
Mississippi	No statewide civilian police board found. File with the officer's department: ask for Internal Affairs or Professional Standards, and get a complaint number. Jackson Police: Professional Standards Section, 601-960-1800. Highway Patrol: Department of Public Safety, dps.ms.gov, 601-987-1212. Records: Public Records Act (Miss. Code 25-61), answer within 7 working days, 14 at most. Incident reports are public. Help: ACLU of Mississippi, aclu-ms.org.
DC	Office of Police Complaints (independent): 1400 I St NW, Suite 700, (202) 727-3838. **File within 90 days.** You or your parent can ask to view MPD body camera video at the district station after 48 hours. Copies: myfoia.dc.gov.
Maryland	Every county and Baltimore City has a Police Accountability Board. Include the officer's name, what happened and how to reach you. Prince George's: 301-883-5042, pgpab@co.pg.md.us. Baltimore City: 410-396-3151, PAB@BaltimoreCity.gov (anonymous accepted). Records: Public Information Act, about 30 days.
Virginia	File with the department's Internal Affairs or Professional Standards. Some areas have civilian review (example: Fairfax County panel, 703-324-2502). Records: Virginia FOIA, 5 working days. Basic incident information must be released.

PART 7 HOLD THEM ACCOUNTABLE

Who works for who: police officers are public employees. Sheriffs are elected. Police chiefs are hired by elected leaders. Every department has written rules, usually called general orders or a policy manual. Know the rules and you can tell when one was broken.

	A complaint	A lawsuit
What it is	Telling the department or an oversight board an officer broke the rules	Asking a court to rule your rights were violated and order payment
Who can do it	Anyone, including teens	Usually through a lawyer. Under 18, a parent files for you.
Cost	Free	Many civil rights lawyers only get paid if you win
Can lead to	Investigation, discipline, retraining, a record	Money damages, policy changes, a public court record

What a complaint does

1. It starts an investigation by Internal Affairs or a civilian board.
2. It ends with a finding. Match each one: Sustained · Not sustained · Unfounded · Exonerated

_____	It happened and broke the rules.
_____	Not enough proof either way.
_____	It didn't happen.
_____	It happened, but it was allowed.

3. Sustained can mean discipline, from retraining to firing.
4. It stays in the department's records, even if it isn't sustained. Five complaints about the same officer tell a story.
5. Serious misconduct can cost an officer their certification.
6. It can help someone else later.

Be real about it: most complaints don't end in discipline. File anyway. A record that doesn't exist can't protect the next kid.

Can I sue a cop?

Sometimes. A federal law, 42 U.S.C. 1983, lets people sue state and local officers who violate their constitutional rights. The hard part is "qualified immunity": courts protect officers unless the right was already "clearly established." You can sometimes sue the city or county if the violation came from its policy or custom. There are deadlines, so talk to a lawyer early. Your Stop Report, complaint number and body camera request are what a lawyer will ask for first.

	Mississippi	DC	Maryland	Virginia
Deadline to sue (1983)	3 years	3 years	3 years	2 years
If you were under 18	Clock pauses until 21	Clock starts at 18	Clock starts at 18	Clock starts at 18
Public misconduct records?	Mostly no	Partly	More open since 2021	Mostly up to the agency

Stop. Document. Report. Follow up. Your report becomes the complaint. The complaint becomes a record. The record can become the evidence. And the evidence is what makes the system answer to you.

Exit ticket

Write the five lines from memory.

Facts checked Oct. 8, 2026. Laws change. Check the live Stop Kit for updates. Agent Kodak is an educator, not an attorney. This is civic education, not legal advice. For your own case, talk to a lawyer or public defender.